

Eligibility Requirement for taking admission in an undergraduate medical course in a Foreign Medical Institution Regulations, 2002

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Union of India - Act

Eligibility Requirement for taking admission in an undergraduate medical course in a Foreign Medical Institution Regulations, 2002

UNION OF INDIA

India

Eligibility Requirement for taking admission in an undergraduate medical course in a Foreign Medical Institution Regulations, 2002

Rule

ELIGIBILITY-REQUIREMENT-FOR-TAKING-ADMISSION-IN-AN-UNDERGRADUATE-MEDICAL-COURSE-IN-A-FOREIGN-MEDICAL-INSTITUTION-REGULATIONS-2002 of 2002

Published on 13 February 2002

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Eligibility Requirement for taking admission in an undergraduate medical course in a Foreign Medical Institution Regulations, 2002

Published vide Notification No. MCI-203(9)/2001/Regn, dated 13.2.2002

Last Updated 19th March, 2019

No. MCI-203(9)/2001/Regn. - In exercise of the powers conferred by Section33 of the Indian Medical Council Act, 1956 (

102 of 1956

), the Medical Council of India, with the previous sanction of the Central Government, hereby makes the following regulations, namely :-

1.

Short title and commencement.

(1)

These regulations may be called the Eligibility Requirement for taking admission in an undergraduate medical course in a Foreign Medical Institution Regulations, 2002.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these Regulations, unless the context otherwise requires, -

(a)

"Act" means the Indian Medical Council Act, 1956 (

102 of 1956

);

(b)

"Council" means the Medical Council of India constituted under section 3 of the Act;

(c)

"Permanent Registration" means registration for the purpose of enrolment on any State Medical Register or Indian Medical Register after obtaining the Primary Medical qualification followed by completion of such practical training as prescribed either in India or abroad as per the provisions of the Act;

(d)

"Primary Medical qualification" means a medical qualification awarded by any medical institution outside India which is a recognized qualification for enrolment as medical practitioner in the country in which the institution awarding the said qualification is situated and which is equivalent to MBBS in India;

(e)

"Provisional Registration" means provisional registration in a State Medical Register or Indian Medical Register for the purpose of undergoing practical training in India as prescribed and for no other purpose by an Indian citizen possessing any primary medical qualification but has not undergone such practical training after obtaining that qualification as may be required by the rules or regulations in force in the country granting the qualification;

(f)

"qualifying examination" means the examination to be qualified to become eligible for admission to MBBS course in India as prescribed in the Graduate Medical Education Regulations, 1997.

3.

An Indian citizen, who has passed the qualifying examination either from India or an equivalent examination from abroad and is desirous of joining an undergraduate medical course in any foreign medical institution on or after 15 March, 2002 shall approach the Council for issue of an Eligibility Certificate for that purpose.

4.

The request for issue of Eligibility Certificate shall be made by the candidate in the proforma prescribed by the Council and shall be accompanied by the original certificate/mark-sheet (alongwith Photostat copy) of the qualifying examination. The original certificate shall be returned to the candidate after verifying the same with the photostat copy which shall be retained by the Council. Request shall also be accompanied by a Demand Draft for the specified sum in favour of Secretary, Medical Council of India, New Delhi. The fee shall be fixed by the Council.

5.

The Council shall be free to investigate on its own into the correctness of information furnished by the candidate in his/her application and/or call for any further information in this regard from the candidate and in the event of any information furnished by the candidate being found to be incorrect or false during such investigation or at any subsequent stage, the Council may refuse to issue the eligibility certificate or if already issued may cancel the same and he/she shall stand debarred from appearing in the screening test prescribed in sub-section (4A) of section 13 of the

Indian Medical Council Act, 1956 without any notice. The decision of the Council in this regard shall be final.

6.

The candidate shall also produce a certificate of his/her date of birth if it is not recorded in the certificate of the qualifying examination.

7.

A candidate belonging to Scheduled Caste/Schedule Tribe/Other Backward Class shall produce a caste certificate issued by Competent Authority.

8.

The Council shall consider the application for Eligibility Certificate and verify the following details as per the Regulations of the Council -

(i)

Whether the candidate fulfills the age criterion prescribed by the Council?

(ii)

Whether the candidate fulfills the eligibility criteria for admission to MBBS course in India as prescribed in the Graduate Medical Education Regulations, 1997, i.e., minimum qualifying marks criteria in Physics, Chemistry, Biology and English, including relaxed criteria in case the candidate belongs to a reserved category?

(iii)

If the candidate belongs to SC/ST/OBC, whether he/she has produced a caste certificate from a Competent Authority?

(iv)

[Indian Citizens/Overseas Citizen of India intending to obtain primary medical qualification from any medical institution outside India, on or after May 2018, shall have to mandatorily qualify the 'National- Eligibility-cum-Entrance Test for Admission to MBBS course'. The result of the 'National-Eligibility-cum- Entrance Test for Admission to MBBS course' shall deem to be treated as the Eligibility Certificate for such persons, provided that such persons fulfils the Eligibility Criteria for admission to the MBBS course prescribed in the Regulations on Graduate Medical Education, 1997.]

[Added by Notification No. MCI-201/2017-Eligi./Gen./176486, dated 1.3.2018, (w.e.f. 13.2.2002).]

[Furthermore, the result of NEET shall be valid for a period of three (3) years from the date of declaration of result, entitling a candidate to pursue MBBS or equivalent medical course including pre-medical/language course, if any, followed by MBBS or equivalent medical course.]

[Added by Notification No. MCI-201/2019-Eligi./Gen./187276, dated 14.3.2019 (w.e.f. 13.2.2002).]

9.

After verification, as required, if the candidate is found to fulfill the eligibility criteria, the Council shall issue an Eligibility Certificate in the prescribed format to the candidate certifying that he/she is eligible to join a medical institution outside India to obtain a primary medical qualification. The certificate shall indicate that on return after obtaining the foreign primary medical qualification, the candidate shall have to undergo a screening test, subject to fulfillment of the conditions prescribed in the Screening Test Regulations, 2002, and that passing this test shall only entitle him to provisional/permanent registration by the Medical Council of India or the State Medical Councils.

[Provided that he/she has studied for the medical course at the same institute located abroad for the entire duration of the course from where he/she has obtained the degree.]

[Added by Notification No. MCI. 203(9)/2010-Regn./3494, dated 16.4.2010 (w.e.f. 13.2.2002).]

10.

In case the candidate does not fulfill any of the qualifying criteria the Council may reject his application for issue of Eligibility Certificate giving the reasons therefor.

11.

The issue of a eligibility certificate to a candidate shall not entitle him to any right, whatsoever, other than to take admission in an undergraduate medical course in a foreign medical institute.

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